

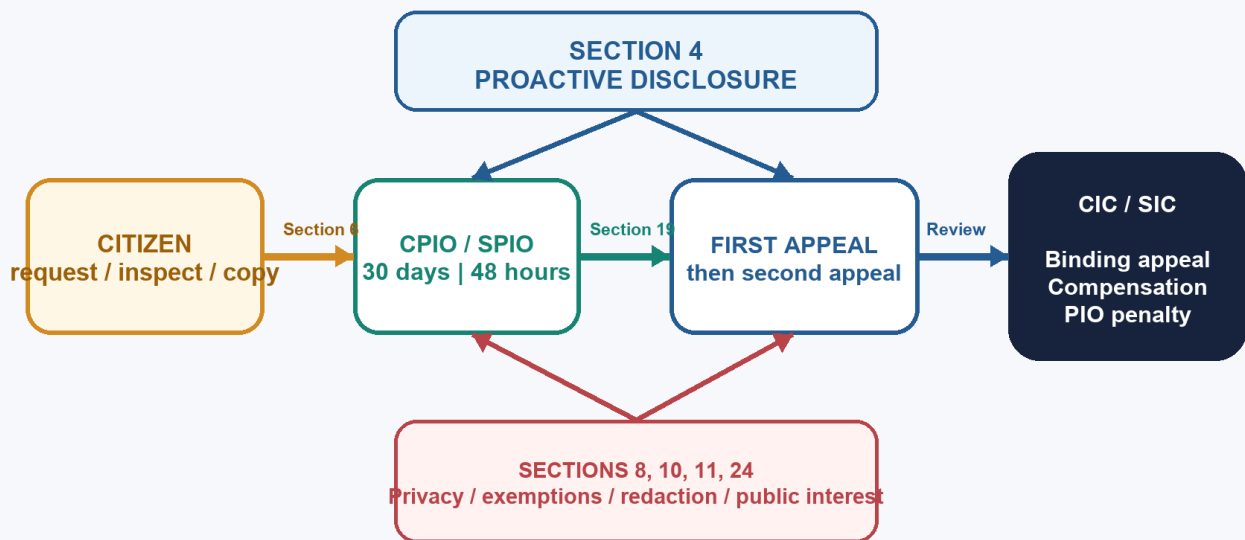
COMPLETE LEARNING SESSION

Polity 36 - CIC and SIC - Complete Topic Package

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

RTI ACCOUNTABILITY ARCHITECTURE

Citizen access, appellate enforcement and calibrated privacy



Article 19(1)(a) right to know | RTI Act, 2005 | Current law controlled to 19 Aug 2026

Original deterministic study visual; labels are explanatory, not textual quotations.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

Polity 36 - CIC and SIC - Complete Topic Package

Control date: 19 August 2026, Asia/Kolkata **Evidence tags:** [FACT] directly supported by a named statute, rule, official notification, judgment, audited local source or official paper; [ANALYSIS] reasoned exam use; [CURRENT] date-sensitive legal position; [LIMIT] qualification, jurisdictional boundary or unresolved issue. **Answer discipline:** claim -> named evidence -> analysis -> qualification. **Scope:** constitutional basis of the right to know; RTI definitions and proactive disclosure; request, transfer, first appeal, second appeal and complaint routes; CIC/SIC composition, appointment, eligibility, service conditions, removal and suspension; powers, compensation, penalty and reporting; exemptions, severability, third-party procedure and security bodies; privacy and the commenced DPDP amendment; case law; independence, comparison and reform.

Package method, source priority and current-law control

- [FACT] The local-first sequence was: Polity/basic/CIC-and-SIC.md -> Polity/advanced/36_CIC-and-SIC.md -> Governance owners for transparency/accountability and data governance -> the consolidated Polity owner for statutory/regulatory/quasi-judicial bodies -> Fundamental Rights, Parliament and judiciary owners only where needed -> all relevant PYQ routing/audit ledgers.
- [FACT] OCR-searchable local official and book PDFs were checked after the Markdown owners. The exact UPSC 2020 GS-II question was verified from the locally held official paper books/more_previous_papers/Gen_St_P2.pdf.
- [FACT] Polity packages 34 and 35 were used only as structural, style and validation references.
- [CURRENT] The controlling statutory text is the Department of Personnel and Training's **Right to Information Act, 2005, as on 18 November 2025**, which lists the Digital Personal Data Protection Act, 2023 among the amending Acts.
- [CURRENT] That official consolidated text records RTI section 8(1)(j) as “**information which relates to personal information**” and footnotes the substitution by DPDP Act section 44 with effect from **13 November 2025**.
- [CURRENT] MeitY notification **G.S.R. 843(E), dated 13 November 2025**, expressly commenced DPDP Act section 44(3) on the date of publication of the notification. The same notification stages most substantive DPDP duties and Data Principal rights for a later tranche.
- [LIMIT] The package therefore treats the substituted RTI clause as operative current statutory text. It does **not** repeat the old clause as current law.
- [CURRENT] The RTI Act's general public-interest override in **section 8(2)** remains in the official consolidated text. The amendment removed the old clause-specific wording and Parliament/State-Legislature proviso; it did not delete section 8(2).
- [LIMIT] No official Supreme Court order was located by the control date that reliably established a stay, Constitution-Bench reference or final disposition of a challenge to section 44(3). The package states no unverified procedural status or constitutional outcome.
- [CURRENT] The 2019 service-condition rules remain the latest official rules located for the tenure and pay taught here: three-year terms; fixed pay of Rs 2,50,000 for the Central Chief Information Commissioner, Rs 2,25,000 for a Central Information Commissioner, and Rs 2,25,000 for both the State Chief Information Commissioner and a State Information Commissioner.
- [LIMIT] Current officeholders, vacancies, pendency, disposal totals, penalty rates and State-wise functionality are deliberately not frozen.

Authoritative evidence board

Named evidence	Claim controlled
Right to Information Act, 2005, DoPT consolidated text as on 18 November 2025	current sections 2-29, including substituted section 8(1)(j)
MeitY G.S.R. 843(E), 13 November 2025	exact phased commencement of DPDP Act, including section 44(3)
RTI (Amendment) Act, 2019	shift of tenure, salary and service conditions from Act to Central rules
RTI service-condition Rules, 2019	three-year terms, pay, allowances, pension adjustment and residuary control
RTI Rules, 2012	Central application fee and appeal/procedure rules; State rules may vary
DoPT section 4 proactive-disclosure guidance	disclosure by default and reduction of request dependence
CIC Annual Reports page and section 25	monitoring/reporting architecture without freezing variable totals
<i>State of U.P. v. Raj Narain</i> (1975)	foundational right-to-know proposition
<i>S.P. Gupta v. Union of India</i> (1981)	open government and disclosure as democratic norm
<i>CBSE v. Aditya Bandopadhyay</i> (2011)	evaluated answer books/existing records; no duty to create information
<i>Chief Information Commissioner v. State of Manipur</i> (2011)	complaint under section 18 is not the disclosure remedy supplied by section 19 appeal
<i>RBI v. Jayantilal N. Mistry</i> (2015)	regulator cannot use a generic fiduciary claim to shield regulated entities
<i>CPIO, Supreme Court of India v. Subhash Chandra Agarwal</i> (2019)	CJI's office is a public authority; privacy/transparency balancing under then-current clause
<i>Anjali Bhargava v. Union of India</i> (2019) and later official orders	timely, transparent appointment process and vacancy control
Audited local PYQ ledger + official 2020 GS-II paper	exact routed PYQ, directive, marks and word limit

Official links used for legal control

- DoPT consolidated RTI Act: <https://dopt.gov.in/sites/default/files/RTI%20Act%202005%20%28u%20dated%20as%20on%2018-11-2025%29.pdf>
- MeitY commencement notification G.S.R. 843(E): <https://www.meity.gov.in/static/uploads/2025/11/c56ceae6c383460ca69577428d36828b.pdf>
- DoPT RTI service-condition Rules, 2019: <https://dopt.gov.in/sites/default/files/RTI%20Rules%202019.pdf>
- DoPT RTI Rules, 2012: https://dopt.gov.in/sites/default/files/RTIRules_2012_English_0.pdf
- DoPT proactive-disclosure materials: <https://dopt.gov.in/rti/proactive-disclosures/important-files-ir-division>
- CIC annual reports: <https://cic.gov.in/annual-reports>
- CIC complaint route: <https://cic.gov.in/complaint>
- Supreme Court, *CIC v. State of Manipur*: <https://api.sci.gov.in/jonew/judis/38918.pdf>
- Supreme Court, *CBSE v. Aditya Bandopadhyay*: <https://api.sci.gov.in/jonew/judis/38344.pdf>
- Supreme Court, *RBI v. Jayantilal N. Mistry*: <https://api.sci.gov.in/jonew/judis/43192.pdf>
- Supreme Court, *CPIO v. Subhash Chandra Agarwal*: https://api.sci.gov.in/supremecourt/2009/36624/36624_2009_1_1502_18247_Judgement_13-Nov-2019.pdf

- Supreme Court, *Anjali Bhardwaj*:

https://api.sci.gov.in/supremecourt/2018/15968/15968_2018_Judgement_15-Feb-2019.pdf

Roadmap

Stage	Units	Exam outcome
Foundation	constitutional root, statutory right and definitions	classify the right and identify covered information
Prevention	record management and section 4 disclosure	explain why transparency should precede applications
Access route	PIO/APIO, request, transfer, time and fee	solve procedural close options
Remedies	first appeal, second appeal and complaint	route the citizen to the correct forum
Institutional design	CIC/SIC composition, appointment and eligibility	compare central and State bodies exactly
Independence	tenure, pay, reappointment, removal and staffing	answer the 2019-amendment autonomy debate
Adjudication	inquiry, appeal, compliance, compensation and penalty	distinguish legal teeth from jurisdictional limits
Withholding	sections 8-11, 24 and 22	separate exemption, procedure, severability and override
Privacy	old/new section 8(1)(j), section 8(2) and DPDP phasing	write current law without losing constitutional nuance
Authorities	seven leading cases	attach exact holdings to propositions
Evaluation	accountability gaps, comparisons and reforms	produce balanced GS-II answers
Workbook	one verified PYQ, 48 rotated MCQs and eight solved Mains	convert doctrine into marks

Visual 1 - Source-to-answer ladder

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CURRENT ACT / RULE / GAZETTE / JUDGMENT
      |
      v
EXACT SECTION, DATE OR HOLDING
      |
      v
INSTITUTIONAL MECHANISM
      |
      v
[ANALYSIS] EFFECT ON TRANSPARENCY / PRIVACY / AUTONOMY
      |
      v
[LIMIT] JURISDICTION / REVIEW / IMPLEMENTATION / UNCERTAINTY

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Caption: A high-scoring Polity answer moves from named authority to mechanism, then analysis, and ends with a controlled qualification.

PART I - Complete foundation, core and advanced learning session

01. Identity: constitutional right, statutory machinery

[FACT] The **Central Information Commission (CIC)** and **State Information Commissions (SICs)** are statutory bodies created by the Right to Information Act, 2005. They are not constitutional courts, tribunals or general grievance authorities.

[FACT] The constitutional foundation is the judicially recognised **right to know** implicit in Article 19(1)(a). The statutory right in section 3, its procedures, exemptions and remedies are nevertheless governed by the RTI Act.

[ANALYSIS] The Constitution supplies the normative foundation; the Act converts that foundation into a practical records-access system with time limits, appeals and penalties.

[LIMIT] A constitutional foundation does not let a Commission ignore the statute. CIC/SIC jurisdiction, procedure and remedies remain bounded by the Act and are subject to constitutional judicial review.

Visual 2 - Norm-to-remedy chain

ARTICLE 19(1)(a)
freedom of speech and expression
|
judicial right-to-know doctrine
|
RTI ACT, 2005
|
PUBLIC AUTHORITY -> PIO -> FIRST APPEAL -> CIC/SIC
|
DISCLOSURE / COMPLIANCE / COMPENSATION / PERSONAL PENALTY

Visual 3 - Status classification

Institution	Source	Correct character	Core output
CIC/SIC	RTI Act, 2005	statutory, quasi-judicial appellate/complaint body	binding appellate decision, compliance direction, compensation, statutory penalty
Supreme Court/High Court	Constitution	constitutional court	binding judgment/writ
tribunal	Constitution/statute	specialised adjudicatory body	adjudicatory order under parent law
NHRC/SHRC	PHRA, 1993	statutory inquiry/recommendation body	recommendations and reports
Lokpal	2013 Act	statutory anti-corruption ombudsman	inquiry/investigation/prosecution architecture

Visual 4 - Three levels of the RTI right

Level	Question answered	Named basis
constitutional	Why may citizens seek government information?	Article 19(1)(a), <i>Raj Narain</i> , <i>S.P. Gupta</i>
statutory	What information, from whom, through which process?	RTI Act sections 2-11
remedial	Who corrects denial or delay?	first appeal, CIC/SIC appeal/complaint, section 20

Visual 5 - What CIC/SIC are not

NOT a constitutional body
NOT a general service-grievance forum
NOT a corruption-investigation agency
NOT a civil or criminal court
NOT a data-protection regulator
BUT a statutory RTI complaint + appellate institution
with binding appellate and penal powers

02. The RTI vocabulary that controls every answer

[FACT] Section 2(f) defines **information** broadly as material in any form, including records, documents, memos, e-mails, opinions, advices, orders, logbooks, contracts, reports, samples, models and electronic data. It also includes information about a private body that a public authority can access under another law.

[FACT] Section 2(i) defines **record** inclusively: documents, manuscripts, files, microfilm/microfiche/facsimile, reproduced images and computer-produced material.

[FACT] Section 2(j) defines the **right to information** as access to information held by or under the control of a public authority, including inspection, notes/extracts/certified copies, certified samples and electronic copies/printouts.

[FACT] Section 2(h) covers a **public authority** established by the Constitution, parliamentary or State law, or government notification/order, and includes bodies owned, controlled or substantially financed and NGOs substantially financed directly or indirectly by government funds.

[ANALYSIS] The critical exam move is to ask whether the requested material already exists or is legally accessible to the public authority. RTI is a records-access right, not a duty to answer a viva voce “why” question by creating a new explanation.

[LIMIT] “Substantially financed” and “controlled” are context-sensitive legal tests. Do not assume every entity receiving any government benefit becomes a public authority.

Visual 6 - Definition funnel

```

MATERIAL IN ANY FORM
|
HELD BY / UNDER CONTROL OF PUBLIC AUTHORITY
|
EXISTING RECORD OR LEGALLY ACCESSIBLE PRIVATE-BODY INFORMATION
|
INSPECT / COPY / SAMPLE / ELECTRONIC ACCESS
=
RIGHT TO INFORMATION
  
```

Visual 7 - Public-authority source matrix

Route into section 2(h)	Illustration	Qualification
Constitution	constitutional office/body	functions may still contain exempt records
parliamentary law	statutory authority	parent Act supplies identity
State law	State statutory body	SIC ordinarily hears the State route
notification/order	executive-created public authority	source notification must be identified
owned/controlled/substantially financed	government-linked body	factual intensity matters
substantially financed NGO	indirect/direct public funds	not every grant is automatically substantial

Visual 8 - Existing information versus new creation

RTI may require	RTI does not ordinarily require
existing file noting	a newly written justification
recorded opinion/advice	fresh expert opinion
held database extract where reasonably accessible	creation of a database that does not exist
inspection/certified copy	answering hypothetical questions
legally accessible private-body record	obtaining information with no legal access route

Visual 9 - Citizen and third party

APPLICANT = citizen exercising section 3 right
THIRD PARTY = anyone other than applicant,
including another public authority

[LIMIT] Section 11 procedure may be triggered where confidential third-party material is contemplated for disclosure. It does not convert the third party into an absolute veto-holder.

03. Section 4: transparency before a citizen asks

[FACT] Section 4 requires record cataloguing/indexing, appropriate computerisation, publication of institutional particulars, powers, procedure, norms, rules, categories of records, consultation arrangements, boards/committees, staff directory, remuneration, budget, subsidies, concessions, electronic information, access facilities and PIO particulars.

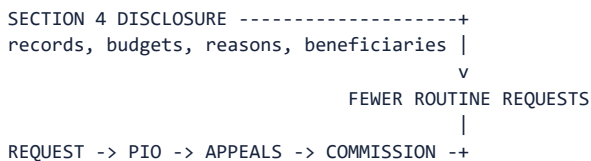
[FACT] Section 4(1)(c) requires publication of relevant facts while formulating important policies or announcing decisions affecting the public. Section 4(1)(d) requires reasons for administrative or quasi-judicial decisions to affected persons.

[FACT] Section 4(2) makes maximum **suo motu** disclosure a constant endeavour so that citizens have minimum resort to requests.

[ANALYSIS] Section 4 is the prevention layer of RTI. A well-designed disclosure system reduces applications, asymmetric information, arbitrariness and appeal backlog.

[LIMIT] Uploading an unreadable scan is formal publication, not necessarily meaningful transparency. Accessibility, local language, updates, machine readability and discoverability determine practical value.

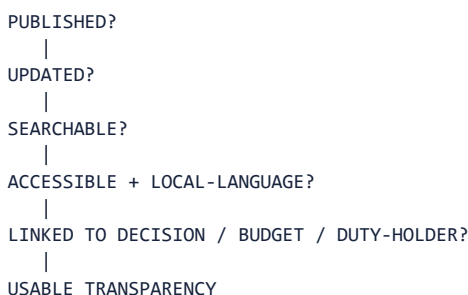
Visual 10 - Prevention-versus-remedy architecture



Visual 11 - Section 4 disclosure clusters

Cluster	Typical content	Accountability use
identity	organisation, functions, duties	locate duty-holder
authority	powers, procedure, norms	test legality and delay
rules/records	manuals, categories, decisions	compare conduct with standard
money	budget, subsidy, concessions	trace allocation and beneficiary logic
people	directory, remuneration, PIOs	identify responsible officers
participation	consultation, boards, minutes	assess voice and openness

Visual 12 - Transparency quality test



Visual 13 - Transparency is necessary, not sufficient

Layer	Question	RTI contribution
visibility	What happened?	record access/disclosure
answerability	Who explains it?	named PIO/public authority/reasons
correction	What changes?	compliance direction/other competent forum
consequence	Who is liable?	PIO penalty/disciplinary recommendation within section 20

04. The access route: PIO, SPIO and APIO

[FACT] Every public authority must designate as many **Central/State Public Information Officers** as necessary. PIOs receive and decide requests and must render reasonable assistance.

[FACT] Central/State Assistant Public Information Officers receive applications or appeals for forwarding. When filed through an APIO, **five days are added** to the response period.

[FACT] A PIO may seek another officer's assistance; for contravention purposes that assisting officer is treated as a PIO.

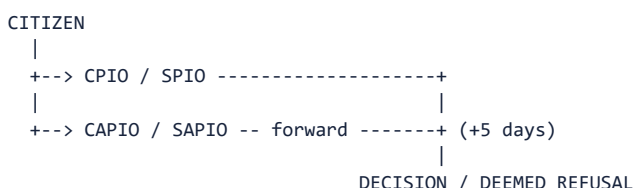
[FACT] A request may be in writing/electronic form in English, Hindi or the official language of the area. If the person cannot write it, the PIO must assist in reducing the oral request to writing.

[FACT] The applicant need not give reasons or personal details beyond those necessary for contact.

Visual 14 - Officer-role map

Officer	Core role	Liability point
CPIO/SPIO	decides and furnishes/rejects	section 20 can apply personally
CAPIO/SAPIO	receives and forwards	five days added
assisting officer	supplies needed assistance	deemed PIO for contravention
first appellate authority	senior officer reviews PIO decision	not the Commission

Visual 15 - Request intake flow



05. Transfer, time, fee and deemed refusal

[FACT] If information is held by another public authority or is more closely connected with its functions, section 6(3) requires transfer of the application or relevant part **as soon as practicable and not later than five days**, with immediate intimation to the applicant.

[FACT] The standard section 7(1) decision period is **30 days**. Information concerning a person's **life or liberty** must be provided within **48 hours**.

[FACT] Failure to decide within the time is **deemed refusal**. Where the authority misses the statutory time, the information must be provided **free of charge**.

[FACT] A further-fee intimation must show the calculation and review rights; the time between dispatch of the intimation and payment is excluded from the 30-day calculation.

[FACT] Under the Central RTI Rules, 2012, the application fee is Rs 10, with prescribed copying/electronic/inspection charges and BPL exemption. State rules may prescribe different forms or fee details within the Act.

[LIMIT] Do not universalise a Central-rule fee detail to every State without checking that State's rules.

Visual 16 - Core statutory clocks

Event	Clock
transfer under section 6(3)	no later than 5 days
ordinary request decision	30 days
life/liberty	48 hours
APIO route	add 5 days
third-party decision	40 days overall
first appeal filing	ordinarily 30 days
first appeal disposal	30 days; up to 45 with written reasons
second appeal filing	ordinarily 90 days
section 24 human-rights information	45 days after required Commission approval route

Visual 17 - Delay consequences

NO DECISION WITHIN TIME
 |
 DEEMED REFUSAL
 |
 FIRST APPEAL
 |
 INFORMATION, IF LATER PROVIDED, FREE OF CHARGE
 |
 POSSIBLE SECTION 20 SCRUTINY OF PIO

Visual 18 - Fee control

Fee issue	Correct rule
application fee	prescribed by applicable rules
BPL applicant	no section 6/7 fee under statutory proviso
extra copying cost	calculation must be intimated
unreasonable fee	section 18 complaint ground and appeal issue
authority delay	information free
State variation	check State rules; do not assume Central form/amount

06. Four routes that candidates must not flatten

[FACT] The RTI system contains a **request**, a **first appeal**, a **second appeal**, and a **section 18 complaint**. They solve related but different procedural problems.

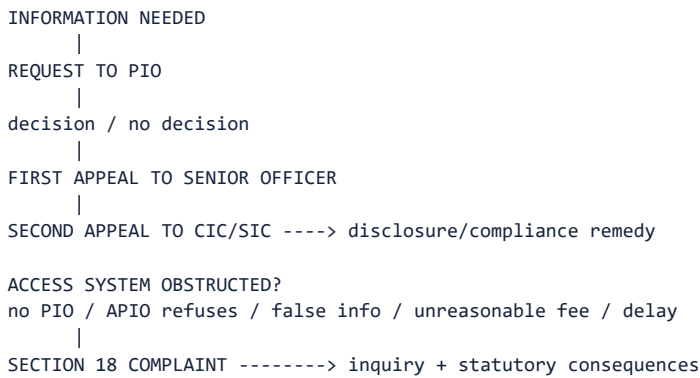
[FACT] The first appeal under section 19(1) goes to an officer senior in rank to the PIO, ordinarily within 30 days. The second appeal under section 19(3) goes to the CIC/SIC, ordinarily within 90 days.

[FACT] Section 18 complaints cover inability to submit a request, refusal of access, no timely response, unreasonable fee, incomplete/misleading/false information and other access-related matters.

[FACT] Under *Chief Information Commissioner v. State of Manipur*, section 18's complaint jurisdiction does not itself become the section 19 appellate disclosure route. A person seeking an order to furnish information should pursue the statutory appeal.

[ANALYSIS] The best exam answer treats complaint and appeal as complementary rather than interchangeable: complaint polices obstruction and maladministration in access; appeal reviews denial and can secure disclosure.

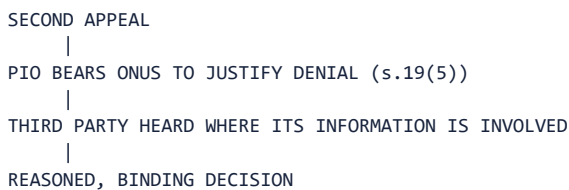
Visual 19 - Route-selection decision tree



Visual 20 - Appeal versus complaint

Dimension	Section 19 appeal	Section 18 complaint
trigger	grievance against PIO/FAA decision or non-decision	listed access-system failure
ordinary sequence	request -> first appeal -> second appeal	direct complaint on listed ground possible
disclosure remedy	yes, through appellate power	not a substitute for disclosure appeal under <i>Manipur</i>
inquiry powers	appellate adjudication and statutory procedure	express civil-court inquiry powers
penalty	section 20 may arise	section 20 may arise

Visual 21 - Burden and hearing



07. CIC composition and appointment

[FACT] Section 12 requires the Central Government to constitute the CIC by Gazette notification.

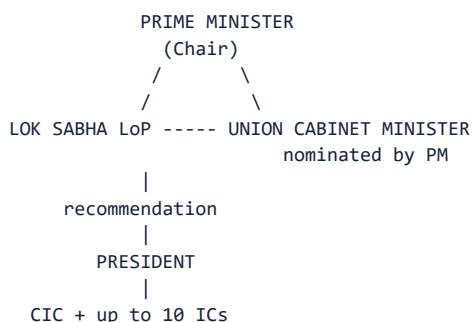
[FACT] The Commission consists of the **Chief Information Commissioner** and such number of Central Information Commissioners, **not exceeding ten**, as considered necessary.

[FACT] The President appoints them on the recommendation of a committee consisting of the **Prime Minister as Chairperson**, the **Leader of Opposition in the Lok Sabha**, and a **Union Cabinet Minister nominated by the Prime Minister**.

[FACT] The statutory explanation deems the leader of the single largest opposition group to be the Leader of Opposition where no LoP has been recognised as such.

[FACT] General superintendence, direction and management vest in the Chief Information Commissioner, assisted by the Information Commissioners, and the Commission acts autonomously without directions from another authority under the Act.

Visual 22 - CIC appointment triangle



Visual 23 - LoP deeming rule

Situation	Statutory treatment
recognised LoP exists	recognised LoP serves
no recognised LoP	leader of single largest opposition group is deemed LoP for this committee

Visual 24 - CIC internal design

Head	Rule	Exam significance
chief	one Chief Information Commissioner	institutional leadership
members	up to ten ICs	statutory ceiling, not guaranteed filled strength
management	vests in Chief, assisted by ICs	internal autonomy language
headquarters	Delhi	other offices need previous Central approval

08. SIC composition and appointment

[FACT] Section 15 requires every State Government to constitute a State Information Commission by Gazette notification.

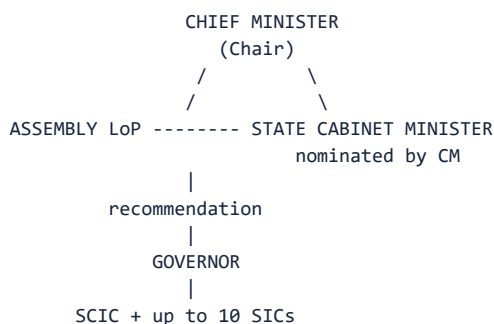
[FACT] It consists of the **State Chief Information Commissioner** and such number of State Information Commissioners, **not exceeding ten**, as considered necessary.

[FACT] The Governor appoints them on the recommendation of a committee consisting of the **Chief Minister as Chairperson**, the **Leader of Opposition in the Legislative Assembly**, and a **Cabinet Minister nominated by the Chief Minister**.

[FACT] The same largest-opposition-group deeming rule applies where no Assembly LoP is recognised.

[LIMIT] The Legislative Council's LoP is not on this statutory committee, even in a bicameral State.

Visual 25 - SIC appointment triangle



Visual 26 - CIC and SIC symmetry

Head	CIC	SIC
appointing authority	President	Governor
committee chair	Prime Minister	Chief Minister
opposition member	Lok Sabha LoP/deemed leader	Assembly LoP/deemed leader
minister member	Union Cabinet Minister nominated by PM	State Cabinet Minister nominated by CM
maximum other commissioners	ten	ten

Visual 27 - Federal jurisdiction shortcut

CENTRAL / UT PUBLIC AUTHORITY -> CPIO -> CIC
 STATE PUBLIC AUTHORITY -> SPIO -> SIC

[LIMIT] Jurisdiction follows the public authority and the Act's "appropriate Government" logic, not merely the applicant's place of residence.

09. Eligibility and disqualifications

[FACT] CIC/IC and SCIC/SIC appointees must be persons of eminence in public life with wide knowledge and experience in **law, science and technology, social service, management, journalism, mass media, or administration and governance**.

[FACT] They cannot be MPs or members of a State/UT legislature, hold another office of profit, be connected with a political party, carry on business, or pursue a profession.

[ANALYSIS] The statute seeks multidisciplinary competence and freedom from immediate political/commercial conflicts, but it does not prescribe a judicial majority or a single professional pipeline.

[LIMIT] Expertise diversity on paper does not guarantee pluralism in actual appointments. Transparent criteria and published shortlists are governance safeguards, not substitutes for the statutory committee.

Visual 28 - Eligibility-disqualification gate

EMINENCE + WIDE KNOWLEDGE/EXPERIENCE
 law | science-tech | social service | management
 journalism | mass media | administration-governance
 |
 v
 NO legislature membership / office of profit /
 party connection / business / profession

Visual 29 - Design rationale

Feature	Intended value	Residual risk
multidisciplinary eligibility	varied understanding of records/governance	vague criteria
no party connection	impartiality	prior affiliations may still matter
no business/profession	conflict reduction	post-tenure incentives remain relevant
committee appointment	political accountability + opposition voice	executive-heavy majority

10. The 2019 amendment: Act versus delegated rules

[FACT] Before the 2019 amendment, the RTI Act itself fixed a five-year term and linked salaries/status to Election Commission offices. The Right to Information (Amendment) Act, 2019 replaced the fixed statutory term and salary provisions with matters to be prescribed by the Central Government.

[FACT] The 2019 service-condition Rules prescribe a **three-year term from entry into office** for the Central Chief, Central ICs, State Chief and State ICs.

[FACT] The statutory maximum age remains **65**. A Chief cannot be reappointed as Chief. An IC cannot be reappointed as IC but may be appointed Chief through the statutory process; the aggregate tenure as IC and Chief cannot exceed **five years**. The State rules are parallel.

[ANALYSIS] The independence debate is not merely “three versus five.” The deeper change is the movement of a safeguard from parliamentary text to executive rule-making by the government whose records the Commissions review.

[LIMIT] Appointment, statutory age ceiling, non-reappointment rules, protected removal and the non-disadvantage proviso remain important safeguards. The amendment weakened structural insulation; it did not erase every independence protection.

Visual 30 - Before-and-after map

Head	Pre-2019 Act	Post-2019 legal design
ordinary term	five years in Act	“such term as prescribed”; Rules = three years
salary parity	linked to Election Commission offices	fixed by Central rules
maximum age	65	65 retained
removal	protected statutory process	retained
rule-maker	core terms in parliamentary Act	Central Government prescribes

Visual 31 - Statute-versus-rule distinction

PARLIAMENTARY ACT

age ceiling | appointment | removal | broad service-rule delegation

↓
v

CENTRAL RULES, 2019

three-year term | pay | allowances | pension adjustment | residuary control

Visual 32 - Reappointment logic

Office	Same-office reappointment?	Possible elevation?	Aggregate ceiling
Chief Information Commissioner	no	not applicable	statutory term + age 65
Information Commissioner	no as IC	eligible for appointment as Chief	max five years across IC + Chief
State Chief Information Commissioner	no	not applicable	statutory term + age 65
State Information Commissioner	no as SIC	eligible for appointment as State Chief	max five years across SIC + State Chief

11. Pay and service conditions under the 2019 Rules

[FACT] The 2019 Rules fix monthly pay at:

- Central Chief Information Commissioner: **Rs 2,50,000**;
- Central Information Commissioner: **Rs 2,25,000**;
- State Chief Information Commissioner: **Rs 2,25,000**; and
- State Information Commissioner: **Rs 2,25,000**.

[FACT] Pension/retirement-benefit adjustments apply as specified. Dearness allowance, leave, medical facilities, accommodation and travel entitlements follow the corresponding same-pay government framework stated in the Rules.

[FACT] Rule 21 sends unprovided service-condition questions to the Central Government, whose decision is binding; rule 22 gives the Central Government relaxation power.

[ANALYSIS] Fixed high pay can support independence, but central control over tenure, residuary questions and relaxation strengthens the autonomy critique, especially for State Commissions.

[LIMIT] Do not revive stale pre-2019 equations to the Chief Election Commissioner, Election Commissioners or Chief Secretary as the current source of pay/status.

Visual 33 - Current pay table

Post	Monthly fixed pay under 2019 Rules
Central Chief Information Commissioner	Rs 2,50,000
Central Information Commissioner	Rs 2,25,000
State Chief Information Commissioner	Rs 2,25,000
State Information Commissioner	Rs 2,25,000

Visual 34 - Independence effect chain

COMMISSION REVIEWS GOVERNMENT DENIALS

|

CENTRAL EXECUTIVE PRESCRIBES TERM + PAY + RESIDUARY CONDITIONS

|

[ANALYSIS] perceived dependence / chilling-risk argument

|

[LIMIT] protected removal + committee appointment + binding powers survive

12. Removal, direct grounds and suspension

[FACT] The President removes the Central Chief/IC; the Governor removes the State Chief/SIC.

[FACT] For **proved misbehaviour or incapacity**, removal follows a Supreme Court inquiry on a reference by the President or Governor, followed by the relevant authority's order.

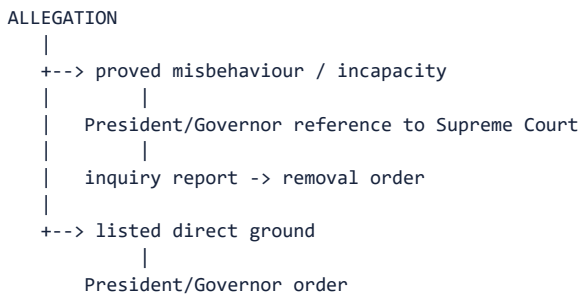
[FACT] Once a reference is made, the President or Governor may suspend the commissioner and, if considered necessary, prohibit attendance at office until the report is received and an order is passed.

[FACT] Direct statutory grounds permit removal without that inquiry route where the member is adjudged insolvent; convicted of an offence involving moral turpitude in the relevant authority's opinion; engages in paid outside employment; is unfit by infirmity of mind/body; or acquires a prejudicial financial/other interest.

[FACT] Interest in a government contract/agreement, beyond the ordinary incorporated-company shareholder exception, is deemed misbehaviour for the inquiry route.

[LIMIT] Do not collapse suspension, direct removal grounds and Supreme-Court-inquiry removal into one procedure.

Visual 35 - Removal decision tree



Visual 36 - Suspension symmetry

Body	Reference maker	Suspension authority during inquiry	Removal authority
CIC	President	President	President
SIC	Governor	Governor	Governor

Visual 37 - Direct-ground checklist

INSOLVENCY
 MORAL-TURPITUDE CONVICTION
 PAID OUTSIDE EMPLOYMENT
 MENTAL / PHYSICAL INFIRMITY
 PREJUDICIAL FINANCIAL OR OTHER INTEREST

13. Section 18 inquiry powers

[FACT] On reasonable grounds, the Commission may initiate an inquiry into a section 18 complaint.

[FACT] While inquiring under section 18, it has civil-court powers concerning summons and attendance, oral/written evidence on oath, discovery/inspection, affidavits, requisition of public records and commissions for witnesses/documents.

[FACT] It may examine any RTI-covered record under the public authority's control, and that record cannot be withheld from the Commission on any ground.

[ANALYSIS] "Civil-court powers" means a strong evidence-gathering toolkit. It does not transform the Commission into a civil court with general jurisdiction.

[LIMIT] The Commission cannot convict, award punitive damages like a tort court, decide the merits of the underlying pension/licence/tender dispute, or strike down a law.

Visual 38 - Civil-court toolkit

Power	Purpose
summon/compel attendance	secure testimony
evidence on oath	formalise fact finding
discovery/inspection	locate relevant documents
affidavit evidence	receive sworn material
requisition public records	overcome departmental withholding
commissions	examine witnesses/documents where needed

Visual 39 - Power is not identity

CIVIL-COURT POWERS FOR LISTED INQUIRY MATTERS
!=
CIVIL COURT WITH GENERAL JURISDICTION

14. Section 19 appellate powers and binding force

[FACT] In appeal, the PIO bears the onus of proving that denial was justified.

[FACT] The Commission's decision is binding under section 19(7), subject to constitutional judicial review.

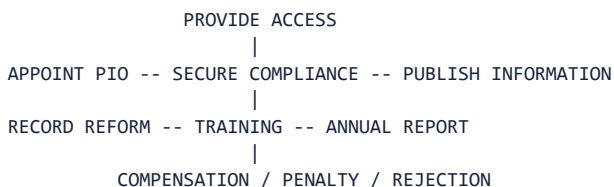
[FACT] Section 19(8) allows the Commission to require steps necessary to secure compliance, including access in a specified form, appointment of a PIO, publication, record-management reform, training and annual-report compliance.

[FACT] It may require the public authority to compensate the complainant for loss/detriment, impose statutory penalties, or reject the application.

[ANALYSIS] The Commission's strongest systemic power is not only ordering one disclosure; it can correct the public authority's disclosure, staffing, record and training architecture.

[LIMIT] Section 23 bars ordinary suits/proceedings against RTI orders, but cannot extinguish High Court/Supreme Court constitutional review. "Final" or "binding" does not mean constitutionally unreviewable.

Visual 40 - Section 19(8) remedy wheel



Visual 41 - Binding-force ladder

Output	Immediate force	Review
PIO decision	operative within department	first appeal
FAA decision	operative	second appeal
CIC/SIC decision	binding under section 19(7)	constitutional judicial review
High Court writ judgment	binding	appeal/SC route as law permits

Visual 42 - Underlying grievance boundary

RTI REQUEST: "Give me the pension file and reasons recorded."
-> CIC/SIC can enforce information access

SERVICE CLAIM: "Sanction my pension."
-> competent service/grievance/court route

15. Penalty, compensation and disciplinary recommendation

[FACT] Section 20(1) applies when, without reasonable cause, the PIO refuses an application, delays beyond section 7(1), malafidely denies, knowingly gives incorrect/incomplete/misleading information, destroys the requested information or obstructs furnishing.

[FACT] The penalty is **Rs 250 per day** until the application is received or information furnished, capped at **Rs 25,000**.

[FACT] The PIO must receive a reasonable opportunity of hearing. The burden of proving reasonable and diligent conduct lies on the PIO.

[FACT] Under section 20(2), persistent default on the listed grounds leads to a recommendation for disciplinary action under applicable service rules.

[FACT] Compensation under section 19(8)(b) is paid by the public authority to redress the complainant's loss/detriment. Penalty under section 20 is personal statutory liability of the PIO. They answer different questions.

[LIMIT] The Commission should not casually fine the public authority, impose a section 20 penalty without statutory findings/hearing, or award punitive damages as though exercising general civil jurisdiction.

Visual 43 - Three-consequence matrix

Consequence	Target	Purpose	Basis
compensation	public authority	repair applicant's loss/detriment	section 19(8)(b)
monetary penalty	PIO personally	deter listed access defaults	section 20(1)
disciplinary recommendation	service authority acts under rules	address persistent default	section 20(2)

Visual 44 - Penalty gate

LISTED DEFAULT
+
NO REASONABLE CAUSE
+
OPPORTUNITY OF HEARING
+
PIO FAILS REASONABLE-DILIGENCE BURDEN
=
Rs 250/day, maximum Rs 25,000

Visual 45 - What section 20 does not do

Wrong claim	Correct position
"Commission fines the ministry"	penalty is on the CPIO/SPIO
"Every delay automatically means penalty"	statutory opinion, reasonable-cause assessment and hearing required
"Compensation and penalty are identical"	recipient, purpose and legal basis differ
"Commission awards punitive damages"	compensation is statutory loss/detriment relief, not general tort punishment

16. Exemptions: sections 8 and 9

[FACT] Section 8(1) lists protected interests: security/sovereignty/foreign relations/incitement; court-forbidden or contempt material; legislative privilege; commercial confidence/trade secrets/IP; fiduciary information; foreign-government confidence; life/safety and confidential sources; investigation/prosecution; Cabinet papers; and current personal-information clause (j).

[FACT] Section 8(2) allows access notwithstanding the Official Secrets Act and section 8(1) exemptions where public interest in disclosure outweighs harm to protected interests.

[FACT] Section 8(3) creates a twenty-year disclosure rule subject to clauses (a), (c) and (i), with date disputes decided by the Central Government subject to usual appeals.

[FACT] Section 9 permits rejection where access would infringe copyright subsisting in a person other than the State.

[ANALYSIS] A proper exemption answer names the protected interest, identifies likely harm, tests severability and then applies any relevant public-interest override. It does not treat "confidential" as a magic word.

Visual 46 - Exemption analysis ladder

```

WHICH CLAUSE?
|
WHAT PROTECTED INTEREST?
|
WHAT DISCLOSURE HARM?
|
CAN NON-EXEMPT PART BE SEVERED?
|
DOES SECTION 8(2) PUBLIC INTEREST OUTWEIGH HARM?
|
REASONED DECISION
  
```

Visual 47 - Section 8 cluster map

Cluster	Clauses	Core concern
State/security	(a), (f), (g), (h)	security, relations, sources, investigation
institutions	(b), (c), (i)	courts, privilege, Cabinet deliberation
economic/private interests	(d), (e), (j)	competition, fiduciary trust, personal information

Visual 48 - Twenty-year rule

```

20-YEAR-OLD INFORMATION
|
normally disclosable
|
except continuing protection under s.8(1)(a), (c), (i)
|
other RTI procedures still apply
  
```

17. Sections 10 and 11: severability and third-party procedure

[FACT] Section 10 requires access to a reasonably severable non-exempt part of a record even where another part is exempt.

[FACT] Section 11 applies when the PIO intends to disclose information relating to or supplied by a third party and treated as confidential. Written notice must ordinarily be given within five days; the third party has ten days to represent; the decision is made within forty days; and appeal rights are communicated.

[FACT] Except for trade/commercial secrets protected by law, disclosure may be allowed where public interest outweighs possible harm/injury to the third party.

[LIMIT] Section 11 is a consultation/procedure provision, **not an independent exemption** and not a third-party veto.

Visual 49 - Severability

```

ONE RECORD
+-----+-----+
| exempt segment | non-exempt segment |
| redact with reasons | disclose             |
+-----+-----+
  
```

Visual 50 - Third-party timeline

```

REQUEST RECEIVED
|
notice to third party within 5 days
|
representation opportunity: 10 days
|
PIO balances law, harm and public interest
|
decision within 40 days
|
third-party appeal right
  
```

Visual 51 - Section 11 trap table

Proposition	Correct?	Why
section 11 itself exempts information	no	procedure, not exemption
third party must be heard where applicable	yes	statutory representation opportunity
third party has absolute veto	no	PIO/appellate authority decides
public interest may support disclosure	yes	express statutory balance in relevant cases

18. Section 24 security organisations and section 22 override

[FACT] Section 24 excludes listed Central intelligence/security organisations and information furnished by them to government, subject to the provisos for allegations of **corruption** and **human-rights violations**.

[FACT] Human-rights information in the Central route requires CIC approval and must be provided within 45 days; the State route uses SIC approval for State-notified organisations.

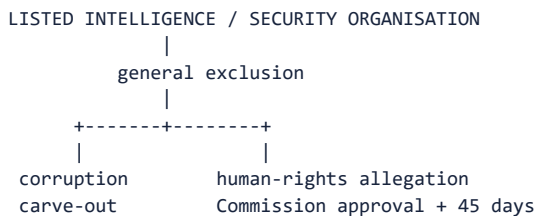
[FACT] The appropriate government may amend the relevant schedule/list by Gazette notification, with legislative laying requirements.

[FACT] Section 22 gives the RTI Act overriding effect over inconsistent provisions in the Official Secrets Act, 1923 and other laws/instruments.

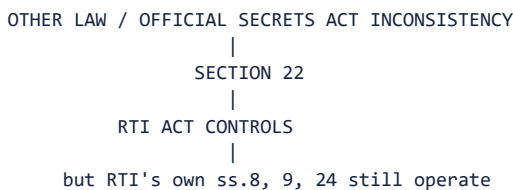
[ANALYSIS] Security exclusion is broad but not absolute. A strong answer distinguishes the corruption carve-out from the human-rights route, which adds Commission approval and a special clock.

[LIMIT] Section 22 does not abolish section 8 or section 24. It resolves inconsistency in favour of the RTI Act's own calibrated scheme.

Visual 52 - Section 24 gate



Visual 53 - Override hierarchy



19. Privacy and the DPDP amendment: current law

[FACT] Before substitution, section 8(1)(j) protected personal information where disclosure had no relationship to public activity/interest or caused unwarranted invasion of privacy, unless larger public interest justified disclosure; it also contained the Parliament/State-Legislature proviso.

[CURRENT] DPDP Act section 44(3) substituted that clause. The current DoPT consolidated RTI Act states: **“information which relates to personal information;”**

[CURRENT] MeitY G.S.R. 843(E), dated 13 November 2025, commenced section 44(3) on the notification's publication date. The DoPT text expressly footnotes the change as effective **13 November 2025**.

[FACT] Section 8(2) remains: a public authority may allow access where public interest in disclosure outweighs harm to protected interests, notwithstanding section 8(1).

[ANALYSIS] The amendment broadens the clause-level exemption by removing the old textual tests and proviso. Yet the Act still contains a general balancing route in section 8(2). The central interpretive dispute is therefore the scope and intensity of that surviving override.

[LIMIT] Do not write either extreme: “privacy now always defeats RTI” or “nothing changed because section 8(2) exists.” The clause text materially changed, while the general override materially survives.

Visual 54 - Old and current clause

Element	Pre-13 Nov 2025 clause (historical)	Current clause
subject	personal information	personal information
public-activity/interest test	express	removed from clause
unwarranted-invasion test	express	removed from clause
clause-specific larger-public-interest exception	express	removed from clause
Parliament/State Legislature proviso	express	removed
general section 8(2) override	existed	remains

Visual 55 - DPDP commencement control

DPDP tranche	Commencement	RTI relevance
first tranche: sections 1(2), 2, 18-26, 35, 38-43, 44(1), 44(3)	date of Gazette publication, 13 Nov 2025	RTI section 8(1)(j) substituted
one-year tranche: section 6(9), section 27(1)(d)	13 Nov 2026	not yet in force on control date
eighteen-month tranche: sections 3-17, most of 27, 28-34, 36-37, 44(2)	13 May 2027	most substantive duties/rights later; IT Act amendment later

Visual 56 - Current privacy-disclosure reasoning

```

PERSONAL INFORMATION
|
current s.8(1)(j) exemption engaged
|
identify protected privacy/data harm
|
test s.8(2): public interest vs harm
|
sever / redact where possible
|
reasoned decision + appeal
  
```

Visual 57 - Enacted, commenced, operational

Status	Meaning	DPDP control
enacted	Parliament passed and President assented	whole Act is on statute book
commenced	provision legally in force by notification	section 44(3) in force since 13 Nov 2025
operational	institutions, rules, people and procedures actually deliver rights/duties	cannot be inferred merely from commencement

Visual 58 - Litigation-status discipline

OFFICIAL CURRENT ACT = substitution in force
OFFICIAL SC ORDER PROVING STAY / REFERRAL / FINAL RESULT = not located
THEREFORE:
teach operative text
do not invent bench, stay, listing or outcome

20. Constitutional privacy after the textual change

[FACT] *CPIO, Supreme Court of India v. Subhash Chandra Agarwal* held the office of the Chief Justice of India to be a public authority and applied a structured balance among transparency, privacy and judicial independence under the then-current statutory text.

[FACT] The constitutional rights to information under Article 19(1)(a) and privacy under Article 21 remain relevant even after statutory amendment.

[ANALYSIS] The 2019 judgment's proportionality reasoning remains an important constitutional method, but the precise statutory pathway changed in 2025. An answer should separate enduring constitutional doctrine from superseded clause wording.

[LIMIT] Do not claim that *Subhash Chandra Agarwal* has already invalidated or neutralised the new clause; the judgment preceded the substitution.

Visual 59 - Two-level privacy analysis

LEVEL 1: CURRENT STATUTE
s.8(1)(j) + s.8(2) + s.10 + reasons/appeal

LEVEL 2: CONSTITUTION
Article 19(1)(a) information interest
versus
Article 21 privacy interest
through proportionality

Visual 60 - Proportionality answer frame

Step	Question
legitimate interest	what privacy or transparency interest is protected?
rational connection	does withholding/disclosure advance it?
necessity	is redaction/severability a less restrictive route?
balancing	does public accountability justify the residual privacy cost?
safeguards	reasons, hearing and appeal?

21. Case law: exact proposition and caution

21.1 State of U.P. v. Raj Narain (1975)

[FACT] The Supreme Court linked democratic government with the people's right to know the acts of public officials, subject to legitimate secrecy claims.

[ANALYSIS] Use it as the foundational “right to know” authority under Article 19(1)(a).

[LIMIT] It predates the RTI Act and does not supply the Act's detailed request/appeal rules.

21.2 S.P. Gupta v. Union of India (1981)

[FACT] The Court described open government as flowing from the right to know implicit in Article 19(1)(a) and treated disclosure as a democratic norm, subject to justified confidentiality.

[ANALYSIS] It strengthens the presumption-of-openness thesis.

[LIMIT] Do not turn the presumption into an absolute disclosure rule.

21.3 CBSE v. Aditya Bandopadhyay (2011)

[FACT] Evaluated answer books are “information” accessible under the Act, subject to lawful exemptions and procedure.

[FACT] A public authority need not create information, generate advice/opinion, draw inferences or collect/collate material not held in its records merely to answer an RTI query.

[ANALYSIS] This case controls the line between records access and interrogatory explanation.

21.4 Chief Information Commissioner v. State of Manipur (2011)

[FACT] Section 18 complaint power and section 19 appellate power have distinct fields. The disclosure remedy is pursued through the appeal route; complaint is not an automatic substitute.

[ANALYSIS] Use it whenever a question asks complaint versus second appeal.

21.5 RBI v. Jayantilal N. Mistry (2015)

[FACT] The RBI could not treat its regulatory relationship with banks as a generic fiduciary basis to withhold inspection-related information; the regulator acts in public interest and must justify any statutory exemption.

[ANALYSIS] It is the leading regulator-transparency authority and shows that “fiduciary” depends on the legal relationship, not a label.

[LIMIT] It does not mean every banking record is automatically public; section 8 interests remain case-specific.

21.6 CPIO, Supreme Court of India v. Subhash Chandra Agarwal (2019)

[FACT] The CJI's office is a public authority under RTI. Disclosure remains subject to privacy, confidentiality, judicial independence and proportionality.

[LIMIT] Its section 8(1)(j) discussion addressed the pre-2025 clause. Use the constitutional method, not the superseded wording, for current answers.

21.7 Anjali Bhardwaj v. Union of India (2019)

[FACT] The Supreme Court addressed prolonged vacancies and directed timely, transparent appointment processes, including public-domain disclosure of relevant selection particulars and initiation sufficiently in advance of vacancies.

[ANALYSIS] The case proves that formal statutory powers are ineffective when the adjudicatory seats remain unfilled.

[LIMIT] Current vacancy numbers must be reverified; cite the structural direction, not stale totals.

Visual 61 - Seven-case matrix

Case	Core proposition	Current use
<i>Raj Narain</i>	people have a right to know public acts	constitutional opening
<i>S.P. Gupta</i>	open government/disclosure norm	transparency thesis
<i>CBSE</i>	existing records; no creation duty	information-scope trap
<i>State of Manipur</i>	complaint ≠ disclosure appeal	remedy routing
<i>Jayantilal Mistry</i>	no generic regulator fiduciary shield	section 8(e) analysis
<i>Subhash Chandra Agarwal</i>	CJI office public authority; proportionality	judiciary/privacy balance
<i>Anjali Bhardwaj</i>	timely transparent appointments	independence/implementation

Visual 62 - Case-selection shortcut

RIGHT TO KNOW?	-> RAJ NARAIN / S.P. GUPTA
WHAT COUNTS AS INFORMATION?	-> CBSE
COMPLAINT OR APPEAL?	-> STATE OF MANIPUR
REGULATORY SECRECY?	-> JAYANTILAL MISTRY
JUDICIARY + PRIVACY?	-> SUBHASH CHANDRA AGARWAL
VACANCIES/APPOINTMENTS?	-> ANJALI BHARDWAJ

22. Independence and accountability: the real institutional test

[FACT] The Act contains several independence supports: committee-based appointment with opposition participation, statutory eligibility/disqualifications, autonomous-function language, age ceiling/non-reappointment, protected removal and binding appellate powers.

[ANALYSIS] Four structural concerns remain:

1. executive-heavy appointment committees;
2. Central rule control over tenure/pay, including State Commissioners;
3. dependence on government-provided staff, offices and budget; and
4. delayed appointments, backlog, non-compliance and weak use of penalty powers.

[FACT] Section 25 requires annual implementation reports covering requests, denials, appeals, disciplinary action, charges, implementation efforts and reform recommendations. The appropriate government lays the report before the relevant legislature through the statutory route.

[ANALYSIS] Information Commissions need dual accountability: independence from the government whose secrecy they review, and transparency about their own listing, reasoning, pendency, penalty and compliance practices.

[LIMIT] “Independent” does not mean unaccountable. Reasoned decisions, conflict rules, publication, judicial review and legislative reporting are compatible with autonomy.

Visual 63 - Independence safeguard-gap matrix

Design head	Safeguard	Gap/risk
appointment	opposition member + statutory committee	executive majority
tenure	fixed three-year rule + age ceiling	rule-made and relatively short
removal	SC inquiry for proved misconduct/incapacity	does not solve vacancy delay
finance/staff	statutory duty to provide staff	dependence on executive provision
powers	binding appeal, penalty, compensation	compliance/penalty use may be weak
accountability	annual reports, reasons, judicial review	delayed reporting or inconsistent data

Visual 64 - Capacity-to-right chain

VACANCY / STAFF SHORTAGE
|
FEWER HEARINGS
|
LONGER SECOND-APPEAL WAIT
|
DELAYED INFORMATION
|
TIME-SENSITIVE ACCOUNTABILITY LOST

Visual 65 - Commission accountability dashboard

Publish without freezing here	Why it matters
sanctioned versus working strength	capacity
age-wise pendency	delay severity
disposal with reason categories	adjudication quality
penalty show-cause and final orders	deterrence
compliance/action-taken status	real enforcement
section 4 audit	prevention

23. Institutional comparisons

Visual 66 - CIC/SIC versus NHRC/SHRC

Dimension	CIC/SIC	NHRC/SHRC
statute	RTI Act, 2005	PHRA, 1993
main issue	information access	human-rights violation/promotion
civil-court powers	section 18 inquiry	PHRA inquiry
ordinary output	binding appellate decision; penalty/compensation	recommendations/reports generally
personal monetary penalty	section 20 on PIO	no parallel general PHRA penalty
removal of State chief/member	Governor	President

Visual 67 - CIC/SIC versus courts

Head	CIC/SIC	Court
source	statute	Constitution/statute
jurisdiction	RTI access/remedies	general/special judicial jurisdiction
procedure	specialised, relatively flexible	judicial procedure
order	binding under RTI, reviewable	binding judgment, appellate hierarchy
cannot do	strike law, convict, decide underlying service right	may exercise judicial remedies within jurisdiction

Visual 68 - CIC/SIC versus Lokpal

Problem	Correct body
"Give corruption-investigation file subject to RTI"	PIO -> RTI appeals, exemptions tested
"Investigate corruption by covered public servant"	Lokpal/vigilance/investigative route
"Award service benefit"	department/grievance/court route
"Penalise PIO for malafide RTI denial"	CIC/SIC section 20

Visual 69 - CIC/SIC versus data-protection institutions

Dimension	CIC/SIC	Data Protection Board framework
parent law	RTI Act, 2005	DPDP Act, 2023
protected interest	access to public-authority information	compliance with personal-data processing law
main claimant	citizen seeking records	Data Principal/affected party under the Act, subject to phased commencement and operational status
current-law caution	section 8(1)(j) substituted	phased commencement; do not assume all rights/duties operational
relationship	RTI privacy exemption and public-interest override	distinct adjudicatory/data-governance mandate

24. Why RTI succeeds and fails

[ANALYSIS] RTI succeeds where records exist, section 4 disclosure is usable, PIOs are trained, first appeals are independent, Commissions are staffed, penalties are credible and orders are complied with.

[ANALYSIS] It fails where record systems are weak, requests are misrouted, exemptions are asserted without harm analysis, first appeals rubber-stamp, vacancies delay hearings, penalties are avoided, or the underlying grievance is incorrectly pushed into RTI.

[LIMIT] RTI can expose a wrong but does not automatically remedy every wrong. Transparency must connect to audit, grievance, vigilance, legislative and judicial routes.

Visual 70 - Success/failure pairs

Success condition	Failure mode
indexed, digitised records	"information not available" due to poor records
section 4 disclosure	repetitive request burden
trained PIO	mechanical exemption
independent first appeal	departmental rubber stamp
staffed Commission	backlog
reasoned penalty use	low deterrence
compliance monitoring	paper victory

25. Reform agenda - proposals, not current law

[ANALYSIS] The following are reform proposals:

1. place a fixed minimum tenure and core service safeguards back in the Act;
2. publish vacancies early, eligibility criteria, applicant lists, shortlists and reasons, subject to legitimate privacy;
3. create an independent secretariat/cadre and predictable budget for CIC/SICs;
4. publish age-wise pendency, penalty show-cause, final penalty and compliance dashboards;
5. strengthen first appellate authorities and mandatory section 4 audits;
6. use severability/redaction before blanket privacy denial;
7. issue reasoned guidance on the interaction between current section 8(1)(j) and section 8(2);
8. create time-bound order-compliance reporting without converting Commissions into general grievance courts;
and
9. modernise records through interoperable, searchable retention systems with privacy safeguards.

[LIMIT] Restoring the old Election Commission parity, changing committee composition or amending section 8(1)(j) requires legislative/policy action; present each as a proposal, not present law.

Visual 71 - Reform-to-defect map

Defect	Targeted reform
executive-rule dependence	statutory core tenure/service safeguards
opaque selection	advance public process + reasoned criteria
backlog	staffing, benches, triage and age-wise dashboard
weak deterrence	consistent reasoned section 20 process
blanket privacy denial	section 8(2) analysis + section 10 redaction
repetitive requests	section 4 disclosure audit
non-compliance	action-taken tracking and escalation

26. Answer-writing frameworks

Visual 72 - 10-marker autonomy spine

DEFINE CIC/SIC + statutory role
|
2019 CHANGE: Act -> Central rules
|
AUTONOMY EFFECT: tenure/pay dependence
|
COUNTER: appointment/removal/powers survive
|
NAMED EVIDENCE: 2019 Rules + Anjali Bhardwaj
|
GRADED VERDICT + targeted reform

Visual 73 - 15-marker effectiveness spine

Paragraph	Content
1	right-to-know + statutory architecture
2	section 4 and request timelines
3	appeal/complaint/powers/penalty
4	vacancies, records, non-compliance, privacy change
5	reforms and graded conclusion

Visual 74 - 20-marker privacy-transparency spine

constitutional rights on both sides
 |
 historical old clause -> current substituted clause
 |
 section 8(2) survives + section 10 redaction
 |
 Subhash Chandra Agarwal proportionality method
 |
 institutional design + current-law uncertainty
 |
 balanced, non-final constitutional verdict

Visual 75 - High-yield traps

Trap	Correct line
CIC/SIC are constitutional tribunals	statutory quasi-judicial bodies
section 11 is an exemption	consultation procedure
section 18 complaint always orders disclosure	disclosure route is section 19 appeal
Commission fines ministry under section 20	personal PIO penalty
State Chief IC salary equals Chief Secretary by current law	fixed Rs 2,25,000 under 2019 Rules
all commissioners cannot ever hold another commission office	IC may become Chief, aggregate max five years
DPDP section 44(3) uncommenced	commenced 13 Nov 2025
DPDP deleted all public-interest balancing	section 8(2) remains
binding order means no judicial review	constitutional review survives
RTI gives the underlying service	it gives existing information and RTI remedies

PART II - Verified PYQ and solved practice workbook

Workbook boundary: Everything from this heading through the eight original solved Mains questions is included in the separate workbook PDF. Final consolidated register notes are intentionally excluded from that workbook.

Verified routed previous-year question

PYQ 1 - UPSC Civil Services (Main) Examination 2020, GS-II, Question 2

Official-paper wording (verbatim-verified from the locally held UPSC paper):

“Recent amendments to the Right to Information Act will have profound impact on the autonomy and independence of the Information Commission”. Discuss. (Answer in 150 words) — 10 marks

Evidence status: [FACT] Exact English wording, year, paper, marks and word limit were checked against books/more_previous_papers/Gen_St_P2.pdf. The local routing ledger cross-routes it to CIC/SIC, transparency/accountability and consolidated statutory-body owners. UPSC supplies no official model answer or marking key; none is inferred.

Demand decode

- **“Recent amendments” in a 2020 paper:** principally the RTI (Amendment) Act, 2019 and the 2019 service-condition Rules.
- **“Profound impact”:** evaluate the mechanism, not merely list altered provisions.
- **“Autonomy and independence”:** test appointment, tenure, pay, removal, staffing, decisional power and relation to the government being reviewed.
- **“Discuss”:** give the autonomy critique, the surviving safeguards/counter-position and a graded verdict.

Model solution

The Information Commissions are statutory appellate watchdogs whose credibility depends on independence from the governments whose disclosure decisions they review.

[FACT] The RTI (Amendment) Act, 2019 removed the Act's fixed five-year tenure and Election-Commission-linked salary provisions and authorised the Central Government to prescribe tenure, pay and service conditions for both Central and State Commissioners. The 2019 Rules fixed a three-year term and specified salaries.

[ANALYSIS] This change can affect autonomy in three ways. First, an executive-controlled rule now determines core conditions of an adjudicator hearing cases against that executive. Second, removal of statutory parity and shortening of ordinary tenure can weaken institutional status and continuity. Third, central prescription for State Commissioners raises a federal-independence concern.

[LIMIT] The amendment did not abolish all safeguards: committee-based appointment with opposition participation, age ceiling, non-reappointment, protected removal after Supreme Court inquiry for proved misbehaviour/incapacity, and binding appellate/penal powers remain.

Therefore, the amendment does not make the Commissions legally subordinate in decision-making, but it shifts a structural guarantee from Parliament's Act to executive rules. Fixed statutory safeguards, timely transparent appointments and independent staffing would better reconcile administrative flexibility with autonomy.

Why this earns marks: It answers the 2020 time context, identifies the exact legal mechanism, links each change to autonomy, supplies a counter-position and reaches a qualified verdict within a 10-marker structure.

Visual 76 - PYQ evidence chain

2019 AMENDING ACT
removes Act-fixed term and parity
|
2019 RULES
three years + rule-fixed pay
|
AUTONOMY CONCERN
executive sets core conditions
|
SURVIVING SAFEGUARDS
committee, age, removal, binding powers
|
GRADED VERDICT

Current-law addendum to the 2020 PYQ

[CURRENT] A 2026 answer may add one final sentence—without rewriting the historical demand—that DPDP Act section 44(3), effective 13 November 2025, has separately changed the substantive personal-information exemption. Institutional autonomy and the breadth of disclosable information are distinct analytical questions.

Original hard MCQs - 36 questions

Q1. The most accurate description of the CIC is:

A. A statutory quasi-judicial RTI appellate and complaint body B. A constitutional court for transparency disputes C. An executive grievance portal D. A tribunal created under Article 323B

Answer: A.

Explanation: [FACT] The RTI Act creates the CIC. It has complaint, appellate, compliance, compensation and penalty powers, but it is not a constitutional court or general tribunal.

Q2. The constitutional foundation of the right to know is most directly linked to:

A. Article 14 alone B. Article 19(1)(a) C. Article 20(3) D. Article 300A

Answer: B.

Explanation: [FACT] *Raj Narain* and *S.P. Gupta* link the right to know/open government with freedom of speech and expression.

Q3. Which is included in the statutory “right to information”?

A. Compelling a department to create a new expert report B. Requiring a minister to answer a hypothetical question C. Taking certified samples of material D. Ordering the grant of a service entitlement

Answer: C.

Explanation: [FACT] Section 2(j) includes inspection, certified copies, certified samples and electronic access. [LIMIT] RTI does not create information or award the underlying entitlement.

Q4. A non-government organisation enters section 2(h) when it is:

A. registered under any law B. performing any socially useful work C. receiving one minor government grant D. substantially financed directly or indirectly by government funds

Answer: D.

Explanation: [FACT] Substantial finance is the statutory test; every registration or small grant is insufficient.

Q5. The central purpose of section 4(2) is to:

A. maximise suo motu disclosure so citizens need minimum resort to requests B. exempt all Cabinet material permanently C. replace the PIO system with social audit D. authorise the Commission to legislate disclosure rules

Answer: A.

Explanation: [FACT] Section 4(2) is the prevention layer of the RTI regime.

Q6. When an application is filed through an APIO, the Act:

A. shortens the period by five days B. adds five days in computing the response period C. converts it into a first appeal D. removes the fee automatically

Answer: B.

Explanation: [FACT] The proviso to section 5(2) adds five days.

Q7. Transfer under section 6(3) must occur:

A. within 48 hours in all cases B. within 30 days C. as soon as practicable and not later than five days D. only after CIC approval

Answer: C.

Explanation: [FACT] The applicant must also be informed immediately about the transfer.

Q8. If a public authority misses the statutory response time:

A. the application lapses B. the applicant must pay a higher copying fee C. only a section 18 complaint is possible D. the failure is deemed refusal and later information is free of charge

Answer: D.

Explanation: [FACT] Sections 7(2) and 7(6) create these consequences.

Q9. Information concerning life or liberty must ordinarily be provided within:

A. 48 hours B. five days C. ten days D. thirty days

Answer: A.

Explanation: [FACT] This is the section 7(1) proviso.

Q10. The first appeal ordinarily lies to:

A. the High Court B. an officer senior in rank to the PIO in the public authority C. the CIC/SIC directly D. the Lokpal

Answer: B.

Explanation: [FACT] The Commission hears the second appeal.

Q11. In a second appeal, the onus to justify denial lies on:

A. the applicant B. the third party in every case C. the PIO who denied the request D. the Commission registry

Answer: C.

Explanation: [FACT] Section 19(5) reverses the ordinary informational disadvantage.

Q12. Chief Information Commissioner v. State of Manipur is authority for the proposition that:

A. section 18 was repealed B. complaints can never trigger penalty C. first appeals are optional in every case D. section 18 complaint is not an automatic substitute for the section 19 disclosure appeal

Answer: D.

Explanation: [FACT] The statutory routes have distinct remedial fields.

Q13. The CIC consists of:

A. the Chief plus not more than ten Central Information Commissioners B. the Chief plus exactly ten members C. eleven members apart from the Chief D. a Chief and unlimited commissioners

Answer: A.

Explanation: [FACT] The Act sets a ceiling, not a required filled strength.

Q14. Which is part of the CIC selection committee?

A. Chief Justice of India B. Union Cabinet Minister nominated by the Prime Minister C. Speaker of the Lok Sabha D. Cabinet Secretary

Answer: B.

Explanation: [FACT] The committee is PM, Lok Sabha LoP/deemed leader, and nominated Union Cabinet Minister.

Q15. If no Lok Sabha Leader of Opposition is formally recognised:

A. the committee becomes two-member B. the President nominates any opposition MP C. the leader of the single largest opposition group is deemed LoP for this purpose D. the Chief Justice joins

Answer: C.

Explanation: [FACT] This is the statutory explanation to section 12(3).

Q16. A State Information Commissioner is appointed by:

A. the President on the Prime Minister's advice B. the Chief Minister directly C. the State Legislature D. the Governor on the statutory committee's recommendation

Answer: D.

Explanation: [FACT] The committee is CM, Assembly LoP/deemed leader and nominated State Cabinet Minister.

Q17. Which is an eligible field of knowledge/experience for an Information Commissioner?

A. Journalism and mass media B. Only judicial service C. Only civil service D. Only information technology

Answer: A.

Explanation: [FACT] The Act lists multiple fields and does not require a judicial monopoly.

Q18. Which disqualification is correctly stated?

A. A former civil servant can never be appointed. B. A serving commissioner cannot be connected with a political party. C. Legal experience is prohibited. D. Every appointee must have held constitutional office.

Answer: B.

Explanation: [FACT] Party connection, legislative membership, office of profit, business and profession are barred.

Q19. Under the 2019 Rules, the ordinary term is:

A. five years for Central and three for State B. six years C. three years from entry into office D. pleasure tenure

Answer: C.

Explanation: [FACT] The age-65 statutory ceiling continues.

Q20. Which reappointment statement is correct?

A. Every IC may receive unlimited three-year renewals. B. A Chief may be reappointed once. C. An IC can automatically become Chief without selection. D. An IC is not reappointable as IC but may be appointed Chief, subject to an aggregate five-year ceiling.

Answer: D.

Explanation: [FACT] Appointment as Chief still follows the statutory committee route.

Q21. The current fixed monthly pay of the Central Chief Information Commissioner under the 2019 Rules is:

A. Rs 2,50,000 B. Rs 2,25,000 C. Rs 2,00,000 D. linked automatically to the serving Chief Election Commissioner

Answer: A.

Explanation: [FACT] The old statutory parity is historical, not the current legal source.

Q22. The current fixed monthly pay of a State Chief Information Commissioner is:

A. Rs 2,50,000 B. Rs 2,25,000 C. whatever the State Cabinet chooses case by case D. automatically the Chief Secretary's pay

Answer: B.

Explanation: [FACT] The Central 2019 Rules prescribe Rs 2,25,000 for both the State Chief and State IC.

Q23. The deepest autonomy criticism of the 2019 amendment is that it:

A. removed all appellate powers B. abolished the opposition member C. moved core tenure/pay conditions from the Act to Central executive rules D. made Commission orders advisory

Answer: C.

Explanation: [ANALYSIS] The change concerns the source and controller of structural safeguards.

Q24. For proved misbehaviour or incapacity, a State Chief Information Commissioner is removed:

A. by the President after a High Court inquiry B. by the Chief Minister without inquiry C. by the State Legislature D. by the Governor after a Supreme Court inquiry on the Governor's reference

Answer: D.

Explanation: [FACT] Do not import the SHRC's President-removal rule into the SIC.

Q25. During a Supreme Court inquiry into a Central commissioner:

A. the President may suspend and prohibit attendance at office B. the Prime Minister alone suspends C. suspension is constitutionally impossible D. the Lok Sabha Speaker suspends

Answer: A.

Explanation: [FACT] Section 14(2) supplies the power after reference.

Q26. Which is a direct statutory removal ground?

A. A decision adverse to government B. Adjudged insolvency C. Low disposal rate without more D. Media criticism

Answer: B.

Explanation: [FACT] Other listed grounds include relevant conviction, paid outside employment, infirmity and prejudicial interest.

Q27. Civil-court powers under section 18 mean that the Commission may:

A. convict a PIO for a criminal offence B. strike down section 8 C. summon witnesses and require evidence on oath D. execute compensation as a civil decree

Answer: C.

Explanation: [FACT] Evidence-gathering power does not convert institutional identity.

Q28. Which is within section 19(8)?

A. Amending the RTI Act B. Sentencing a public servant C. Granting the underlying pension D. Requiring a public authority to improve record-management practices

Answer: D.

Explanation: [FACT] Section 19(8) contains systemic compliance directions.

Q29. A section 20(1) monetary penalty is imposed on:

A. the responsible CPIO/SPIO personally B. Parliament C. the public authority as a corporate fine D. the applicant

Answer: A.

Explanation: [FACT] Compensation and penalty must be distinguished.

Q30. The maximum section 20(1) penalty is:

A. Rs 10,000 B. Rs 25,000 C. Rs 50,000 D. unlimited

Answer: B.

Explanation: [FACT] The daily rate is Rs 250.

Q31. Compensation under section 19(8)(b) primarily seeks to:

A. punish the applicant B. fund the Commission C. redress loss or detriment suffered by the complainant D. replace disciplinary action

Answer: C.

Explanation: [FACT] It is distinct from the PIO's personal penalty.

Q32. Section 11 is best described as:

A. an absolute exemption for all third-party records B. a privacy chapter overriding section 8(2) C. a veto vested in every third party D. a notice, representation and decision procedure, not an independent exemption

Answer: D.

Explanation: [FACT] The authority must still apply the relevant exemption/public-interest rules.

Q33. Section 10 requires:

A. disclosure of reasonably severable non-exempt portions B. rejection of the whole record whenever one line is exempt C. third-party consent in every request D. automatic transfer to a court

Answer: A.

Explanation: [FACT] Redaction/severability is a less restrictive disclosure tool.

Q34. Under section 24, human-rights information concerning a listed Central security organisation:

A. is always absolutely barred B. follows the CIC-approval route and a 45-day clock C. is decided only by Parliament D. must be supplied in 48 hours

Answer: B.

Explanation: [FACT] Corruption and human-rights allegations are preserved provisos; the latter has approval/time conditions.

Q35. The current RTI section 8(1)(j) text is:

A. the old public-activity/unwarranted-invasion formulation B. the Parliament-parity proviso only C. “information which relates to personal information” D. a complete repeal of personal-information protection

Answer: C.

Explanation: [CURRENT] DoPT’s consolidated Act records the substitution effective 13 November 2025.

Q36. Which current-law statement is most accurate?

A. DPDP section 44(3) commences in May 2027. B. Section 8(2) was deleted with clause (j). C. The Supreme Court has finally upheld the substitution. D. Section 44(3) is in force, section 8(2) remains, and no unverified litigation outcome should be asserted.

Answer: D.

Explanation: [CURRENT] This is the legally controlled position as of the package date.

Remedial MCQs - 12 questions

R1. A student writes, “CIC is a constitutional tribunal because its orders are binding.” The best correction is:

A. Source and force are separate: CIC is statutory and quasi-judicial, with binding appellate orders subject to judicial review. B. Every binding body is a constitutional court. C. CIC is an executive committee. D. CIC is a tribunal under Article 323A.

Answer: A.

Explanation: [FACT] Classify by creating source, then state powers.

R2. Which request most clearly seeks information under the Act?

A. “Why did you personally dislike my representation?” B. “Provide the recorded file noting and order on my representation.” C. “Create a new comparative policy study.” D. “Sanction my claim immediately.”

Answer: B.

Explanation: [FACT] Existing recorded material is the statutory object.

R3. An applicant wants actual disclosure after a PIO denial. The safer route is:

A. section 18 complaint only, with no appeal B. direct civil suit C. first appeal followed by section 19 second appeal D. Lokpal complaint

Answer: C.

Explanation: [FACT] *State of Manipur* controls the complaint/appeal distinction.

R4. Which sentence must be deleted?

A. The Commission can summon witnesses during a section 18 inquiry. B. The Commission can direct disclosure in second appeal. C. The Commission can compensate loss under section 19(8). D. The Commission can finally decide whether the applicant is entitled to a pension.

Answer: D.

Explanation: [LIMIT] It decides information access, not the underlying service right.

R5. The strongest correction to “all Commissioners are barred from ever becoming Chief” is:

A. An IC cannot be reappointed as IC but may be appointed Chief through the statutory route, subject to the aggregate ceiling. B. Every IC automatically becomes Chief. C. The President may waive all tenure rules. D. Only State ICs may become Chief.

Answer: A.

Explanation: [FACT] This is the high-yield reappointment nuance.

R6. Which salary statement is current?

A. State Chief salary equals the CEC by the Act. B. The 2019 Rules fix Rs 2,25,000 for both State Chief and State IC. C. Every State separately fixes salary. D. No salary is prescribed.

Answer: B.

Explanation: [FACT] Do not use stale parity.

R7. A Commission wants to impose penalty for delay. It must especially ensure:

A. a political approval B. applicant consent C. statutory grounds, hearing and assessment of reasonable diligence D. prior criminal conviction

Answer: C.

Explanation: [FACT] Penalty is not an automatic arithmetic consequence of every delay.

R8. Which pairing is correct?

A. compensation—PIO personally; penalty—public authority B. both—public authority C. both—PIO personally D. compensation—public authority; penalty—PIO personally

Answer: D.

Explanation: [FACT] Purpose and target differ.

R9. A record contains exempt personal details and non-exempt expenditure totals. The first corrective tool is:

A. section 10 severability/redaction B. blanket rejection C. section 24 security exclusion D. destruction of the record

Answer: A.

Explanation: [FACT] Disclosure should be narrowed to the non-exempt part where reasonably severable.

R10. Which sentence correctly treats section 11?

A. It creates a new exemption. B. It provides third-party consultation; the authority still decides under the Act. C. It gives the third party an absolute veto. D. It applies only to intelligence agencies.

Answer: B.

Explanation: [FACT] Procedure and exemption must not be conflated.

R11. Which statement preserves the DPDP timing distinction?

A. Every DPDP right and duty became operational in November 2025. B. Section 44(3) is still uncommenced. C. Section 44(3) commenced in the first tranche, while most sections 3-17 commence in May 2027. D. Section 44(2) amended RTI section 8(1)(j).

Answer: C.

Explanation: [CURRENT] Section 44(2) concerns the IT Act and is in the later tranche.

R12. The safest conclusion on privacy and transparency is:

A. Privacy always defeats disclosure. B. The old clause remains current. C. Section 8(2) makes the substitution meaningless. D. The clause-level exemption broadened, while section 8(2), severability and constitutional proportionality remain important controls.

Answer: D.

Explanation: [ANALYSIS] This recognises both legal change and surviving safeguards.

Visual 77 - MCQ coverage and rotation audit

Domain	Questions	Correct-option sequence
identity, definitions and section 4	Q1-Q5	A-B-C-D-A
process and routes	Q6-Q12	B-C-D-A-B-C-D
design and service conditions	Q13-Q24	A-B-C-D repeated three times
powers, penalty and exemptions	Q25-Q34	A-B-C-D-A-B-C-D-A-B
current privacy law	Q35-Q36	C-D
remedials	R1-R12	A-B-C-D repeated three times
total	48	strict continuous A-B-C-D repeated 12 times

Original solved Mains practice - 8 questions

Original Mains 1 - 10 marks, 150 words

Question: Distinguish a complaint under section 18 of the RTI Act from a second appeal under section 19. Why does the distinction matter?

Directive decode: “Distinguish” requires common criteria, not two isolated descriptions; the second limb requires practical significance.

Model solution

A section 18 complaint and a section 19 second appeal both reach an Information Commission, but they serve distinct remedial purposes.

[FACT] Section 18 permits a complaint where a person cannot submit a request, is refused access, receives no timely reply, faces unreasonable fee, or receives incomplete, misleading or false information. On reasonable grounds, the Commission may inquire with civil-court powers and inspect any covered record.

[FACT] A second appeal under section 19(3) follows the first-appeal route and allows the Commission to review denial/non-decision. The PIO bears the burden of justifying denial; section 19(8) permits disclosure and systemic compliance directions.

[FACT] In *Chief Information Commissioner v. State of Manipur*, the Supreme Court held that the complaint route is not an automatic substitute for the statutory appellate disclosure remedy.

[ANALYSIS] The distinction matters because remedy must match jurisdiction. A citizen seeking the document should use appeal, while obstruction of the access system may justify complaint and penalty scrutiny.

[LIMIT] Section 20 consequences may arise in either complaint or appeal when statutory conditions are met.

Why this earns marks: It compares trigger, power, remedy and authority, uses the controlling case and preserves the section 20 qualification.

Visual 78 - Complaint-appeal 10-marker grid

Criterion	Complaint	Second appeal
section	18	19(3)
focus	access-system failure	review of denial/non-decision
disclosure	not substitute route	direct appellate remedy
authority	civil-court inquiry	binding appeal + section 19(8)

Original Mains 2 - 10 marks, 150 words

Question: Explain how compensation, monetary penalty and disciplinary recommendation operate as distinct accountability tools under the RTI Act.

Directive decode: State target, trigger, purpose and procedure for each.

Model solution

The RTI Act separates restorative, deterrent and service-disciplinary consequences.

[FACT] Under section 19(8)(b), the Commission may require the **public authority** to compensate a complainant for loss or detriment. This is restorative: it addresses the applicant's injury from wrongful RTI administration.

[FACT] Section 20(1) imposes a **personal penalty on the CPIO/SPIO** for listed defaults—refusing an application, delay, malafide denial, knowingly false/incomplete/misleading information, record destruction or obstruction—without reasonable cause. The rate is Rs 250 per day, capped at Rs 25,000. The PIO receives a hearing and bears the reasonable-diligence burden.

[FACT] Section 20(2) requires a **disciplinary recommendation** for persistent default under applicable service rules. The competent service authority, not the Commission acting as employer, carries the process forward.

[ANALYSIS] Together, the tools repair individual harm, deter access obstruction and address repeated service misconduct.

[LIMIT] They cannot be merged into a casual fine on the department or punitive damages without statutory findings.

Why this earns marks: It names sections, target, trigger and purpose, and ends with the due-process boundary.

Visual 79 - Accountability triad

LOSS TO APPLICANT -> compensation by public authority

LISTED PIO DEFAULT -> personal monetary penalty

PERSISTENT DEFAULT -> disciplinary recommendation under service rules

Original Mains 3 - 10 marks, 150 words

Question: Compare the composition, appointment and removal of the CIC and SIC.

Directive decode: Use identical heads and include the LoP deeming rule and suspension/removal trap.

Model solution

Both bodies are statutory Information Commissions under the RTI Act, but their design mirrors Union and State executive structures.

[FACT] **Composition:** CIC comprises the Chief plus not more than ten Central ICs; SIC comprises the State Chief plus not more than ten State ICs.

[FACT] **Appointment:** The President appoints CIC members on a committee of the Prime Minister, Lok Sabha Leader of Opposition and a Union Cabinet Minister nominated by the PM. The Governor appoints SIC members on a committee of the Chief Minister, Assembly Leader of Opposition and a State Cabinet Minister nominated by the CM. Where no LoP is recognised, the leader of the single largest opposition group is deemed LoP.

[FACT] **Removal:** The President removes Central commissioners; the Governor removes State commissioners. Proved misbehaviour/incapacity requires a Supreme Court inquiry on the relevant authority's reference. That authority may suspend during the inquiry. Listed direct grounds permit removal by order.

[LIMIT] Do not import the NHRC/SHRC rule: an SHRC member is removed by the President, whereas an SIC member is removed by the Governor.

Why this earns marks: The answer uses common heads, exact authorities and the highest-yield inter-commission trap.

Visual 80 - CIC/SIC comparison spine

Head	CIC	SIC
chief + others	Chief + <=10	State Chief + <=10
appoint	President	Governor
committee chair	PM	CM
remove	President	Governor
SC inquiry	proved misconduct/incapacity	same

Original Mains 4 - 15 marks, 250 words

Question: "Information Commissions possess substantial legal teeth, yet the RTI regime can remain institutionally weak." Analyse.

Directive decode: Establish powers, then explain why formal capacity may not translate into outcomes.

Model solution

Information Commissions are stronger than merely recommendatory accountability bodies, but legal power is only one link in the transparency chain.

Legal teeth: [FACT] Under section 18, they can inquire with civil-court powers and inspect any RTI-covered public record. In appeal, section 19(7) makes decisions binding, while section 19(8) permits disclosure, appointment of PIOs, proactive publication, record-management reform, training, compensation and penalties. Section 20 imposes a personal Rs 250-per-day penalty up to Rs 25,000 and supports disciplinary recommendation. [ANALYSIS] These powers combine adjudication, systemic correction and deterrence.

Why weakness persists: [FACT] *Anjali Bhardwaj* addressed prolonged vacancies and demanded timely transparent appointments. [ANALYSIS] An unfilled Commission cannot convert a statutory 30-day request into timely appellate relief. Government-provided staff, offices and budgets may limit administrative autonomy. Weak record management produces genuine/non-genuine "non-availability," while rubber-stamp first appeals shift avoidable cases upward. Sparing or inconsistent penalty use reduces deterrence. Non-compliance can turn a binding order into a paper victory.

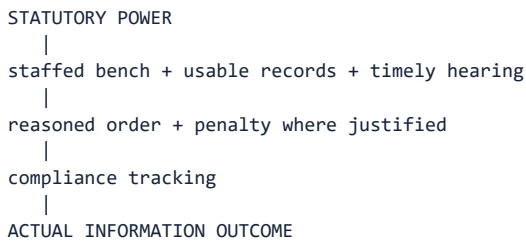
Substantive narrowing: [CURRENT] The commenced substitution of section 8(1)(j) broadens the clause-level personal-information exemption, though section 8(2) remains. [ANALYSIS] The Commission's power matters only within the information Parliament leaves disclosable.

Qualification: [LIMIT] Backlog or non-compliance should not be described through stale unverified totals; outcomes vary across Commissions and time.

Conclusion: RTI is not toothless in law; it is capacity-constrained in practice. Advance appointments, independent secretariats, section 4 audits, compliance dashboards and reasoned penalty practice would connect formal power to timely transparency.

Why this earns marks: It balances exact sections with causal institutional analysis, current-law control and targeted reforms.

Visual 81 - Teeth-to-outcome chain



Original Mains 5 - 15 marks, 250 words

Question: Examine the transparency-privacy balance under the RTI Act after the commencement of DPDP Act section 44(3).

Directive decode: State current law, compare the historical text, identify surviving controls and avoid predicting litigation.

Model solution

The DPDP amendment changes the statutory starting point for personal information but does not eliminate every transparency safeguard.

Current law: [CURRENT] MeitY G.S.R. 843(E) commenced DPDP section 44(3) on 13 November 2025. DoPT's consolidated RTI Act now states in section 8(1)(j): "information which relates to personal information." The old tests—no relation to public activity/interest, unwarranted invasion of privacy, clause-specific larger-public-interest exception and Parliament/State-Legislature proviso—are historical, not current text.

Effect: [ANALYSIS] The new clause is broader and easier to invoke at the threshold because it no longer requires the PIO to establish the old clause-level conditions. This may protect privacy consistently but can shield information about public decision-making where personal and public roles overlap.

Surviving controls: [FACT] Section 8(2) still allows disclosure where public interest outweighs harm to protected interests. Section 10 requires severability, permitting redaction rather than blanket withholding. Reasons, first appeal and Commission review remain. [FACT] *Subhash Chandra Agarwal* supplies a constitutional proportionality method for balancing transparency, privacy and institutional independence, though it interpreted the prior clause.

Current qualification: [LIMIT] Most substantive DPDP duties/rights are in a later tranche, so partial commencement must not be described as full operationality. No official Supreme Court order proving a stay, reference or final result was located for this package; no procedural status is asserted.

Conclusion: The clause-level balance has shifted toward privacy, but section 8(2), severability, reasons and constitutional proportionality remain central transparency controls.

Why this earns marks: It gets the commencement and text right, distinguishes clause-level and general overrides, and avoids unverified litigation claims.

Visual 82 - Privacy answer balance

Privacy-side evidence	Transparency-side control
new broad clause (j)	section 8(2) override
legitimate personal-data harm	section 10 redaction
DPDP statutory policy	reasons and appeals
Article 21	Article 19(1)(a) + proportionality

Original Mains 6 - 15 marks, 250 words

Question: Proactive disclosure under section 4 is more important to RTI's success than the volume of individual applications. Discuss.

Directive decode: Explain mechanism, benefits, limitations and a balanced verdict.

Model solution

Section 4 makes transparency an administrative default rather than a citizen-by-citizen struggle.

Statutory design: [FACT] Public authorities must catalogue/index records, computerise appropriate material, publish organisational powers, procedures, norms, rules, record categories, consultation arrangements, budgets, subsidies, concessions, remuneration and PIO particulars. Sections 4(1)(c)-(d) require relevant policy facts and reasons for administrative/quasi-judicial decisions. Section 4(2) seeks maximum suo motu disclosure so citizens need minimum resort to applications.

Why it matters: [ANALYSIS] First, publication lowers information asymmetry for every citizen simultaneously. Second, disclosure of budgets, beneficiaries and decision rules enables social audit, media scrutiny and legislative oversight. Third, it reduces repetitive applications and Commission backlog. Fourth, reason-giving improves administrative discipline before litigation arises.

Named evidence: [FACT] The Act's preamble links informed citizenry and transparency with containing corruption and accountability. DoPT's proactive-disclosure guidance translates section 4 into implementation expectations.

Limits: [LIMIT] A stale, scanned or unsearchable upload may satisfy form but fail use. Privacy, security and legitimate confidentiality still require calibrated redaction. Poor record creation cannot be cured by a website alone, and publication does not itself provide service relief or sanction wrongdoing.

Reform: Annual third-party section 4 audits, machine-readable datasets, local-language access, disclosure logs and linkage to record-retention rules should be institutionalised.

Conclusion: Applications remain the enforceable safety valve, but section 4 determines whether RTI operates as routine open government or as perpetual adversarial litigation.

Why this earns marks: It uses exact section 4 duties, explains causal benefits, names implementation limits and avoids equating transparency with complete accountability.

Visual 83 - Section 4 multiplier

ONE PROACTIVE DISCLOSURE
|
MANY CITIZENS INFORMED
|
FEWER REQUESTS + BETTER AUDIT + EARLIER CORRECTION
|
LOWER APPEAL BURDEN

Original Mains 7 - 20 marks, 250 words

Question: Critically evaluate the independence of the Central and State Information Commissions after the RTI (Amendment) Act, 2019. Suggest institutional safeguards.

Directive decode: Apply explicit independence criteria, present counter-evidence and propose legally appropriate reforms.

Model solution

Information Commissions require independence because they adjudicate disclosure disputes against the same governments that appoint, fund and staff them.

Surviving statutory safeguards: [FACT] CIC appointments are made by the President on a PM-LoP-Union Minister committee; SIC appointments by the Governor on a CM-Assembly LoP-State Minister committee. The Act prescribes multidisciplinary eligibility, conflict disqualifications, age 65, non-reappointment and protected removal. Proved misbehaviour/incapacity requires Supreme Court inquiry. Section 19 decisions are binding; sections 19(8) and 20 provide compliance, compensation and penalty powers.

Post-2019 concern: [FACT] The amendment removed Act-fixed five-year tenure and Election-Commission-linked pay and delegated tenure, salary and service conditions to Central rules. The 2019 Rules prescribe three-year terms and fixed pay, with Central control over residuary conditions and relaxation. [ANALYSIS] This creates a structural conflict: the executive whose secrecy is reviewed determines core conditions of both Central and State adjudicators. Shorter rule-made tenure may reduce continuity, while central prescription for SICs adds a federal concern.

Counter-position: [LIMIT] Rule-made conditions do not automatically prove biased decisions. High fixed salaries, the non-disadvantage proviso, committee appointment, SC-inquiry removal and binding powers remain. Statutory bodies need not replicate a constitutional body's status in every respect.

Operational independence: [FACT] *Anjali Bhardwaj* required timely transparent appointments. [ANALYSIS] Vacancy delay, executive-provided staff/budget and weak compliance can impair independence more directly than formal text.

Safeguards: Parliament should restore core tenure/service guarantees to the Act; selection should begin before vacancies with published criteria/shortlists; independent secretariats and predictable budgets should be created; age-wise pendency, recusal, penalty and compliance data should be published; first appeals and section 4 audits should reduce appellate load.

Conclusion: The 2019 change did not extinguish legal autonomy, but moved key structural guarantees into executive hands. Independence now depends too heavily on rules and practice; statutory insulation and operational capacity should be strengthened together.

Why this earns marks: It evaluates appointment, tenure, pay, removal, powers, staffing and appointments with named law/case evidence and a balanced verdict.

Visual 84 - Independence criteria matrix

Criterion	Present support	Present vulnerability
appointment	opposition participation	executive majority
tenure/pay	fixed 2019 Rules	Central rule control
removal	Supreme Court inquiry	no cure for non-appointment
decisional power	binding + penal	compliance gap
administration	statutory staff duty	executive dependence
accountability	reports/reasons/review	variable publication quality

Original Mains 8 - 20 marks, 250 words

Question: The RTI Act is an ecosystem of records, disclosure, adjudication and accountability rather than merely a request-and-reply law. Analyse the statement with reference to CIC and SIC.

Directive decode: Cover the full architecture, show causal links and identify system boundaries.

Model solution

The RTI Act converts the constitutional right to know into a chain extending from record creation to appellate enforcement.

Records and disclosure: [FACT] Section 2 defines information, record, public authority and modes of access. Section 4 requires cataloguing, computerisation, institutional/budget/beneficiary disclosure and reasons, while section 4(2) seeks minimum resort to applications. [ANALYSIS] Without reliable records, the legal right has no object.

Request administration: [FACT] Sections 5-7 establish PIO/APIO assistance, reason-free applications, five-day transfer, 30-day decisions, 48-hour life/liberty access, deemed refusal and free information after delay. [ANALYSIS] Time limits turn openness from discretion into duty.

Adjudication: [FACT] First appeal stays within the authority; second appeal reaches CIC/SIC, where the PIO bears the denial burden. Section 18 separately addresses access-system complaints. *State of Manipur* prevents remedial confusion. Commission decisions bind; section 19(8) supports disclosure, publication, record reform, training and compensation.

Accountability: [FACT] Section 20 creates personal penalty and disciplinary recommendation. Section 25 monitors denials, appeals, discipline and reform. *Anjali Bhardwaj* shows that vacancies can disable this architecture.

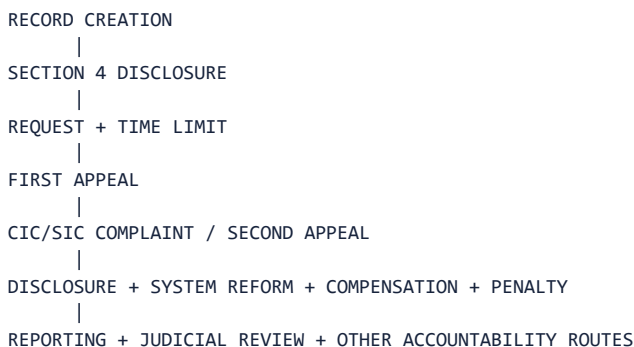
Calibrated secrecy: [FACT] Sections 8-11 and 24 protect legitimate interests, while section 8(2), severability and corruption/human-rights provisos preserve accountability. [CURRENT] The 2025 personal-information substitution shifts the balance but leaves section 8(2) intact.

Boundaries: [LIMIT] CIC/SIC do not grant the underlying pension, investigate corruption generally, convict offenders or become constitutional courts. Judicial review remains.

Conclusion: RTI works when section 4 prevention, trained PIOs, independent first appeals, staffed Commissions, reasoned exemptions, penalty and compliance operate as one system. Reform must therefore target records and institutions, not merely shorten the application form.

Why this earns marks: It traces the full statutory chain, integrates cases/current law and preserves jurisdictional limits.

Visual 85 - Ecosystem synthesis



Final consolidated register notes - CIC and SIC

A. Identity and constitutional anchor

- [FACT] CIC/SIC are **statutory quasi-judicial RTI bodies**, not constitutional courts or tribunals.
- [FACT] Article 19(1)(a) supplies the right-to-know foundation through *Raj Narain* and *S.P. Gupta*; the RTI Act supplies enforceable procedure.
- [LIMIT] Constitutional foundation does not enlarge Commission jurisdiction beyond the Act.

B. Four definitions to recall

Term	Compressed rule
public authority	Constitution/law/notification body + owned/controlled/substantially financed body + substantially financed NGO
information	material in any form, including legally accessible private-body information
record	files/documents/microforms/computer material
right to information	inspect, copy, extract, sample and obtain electronic/print access to held/controlled information

Trap: Existing recorded opinion is information; a new opinion or explanation need not be created.

C. Section 4 prevention layer

CATALOGUE + INDEX + COMPUTERISE

PUBLISH organisation / procedure / norms / rules / budgets /
subsidies / concessions / staff / PIOs / policy facts / reasons

MINIMUM RESORT TO REQUESTS

- [ANALYSIS] Best Mains line: **section 4 converts transparency from individual litigation into an administrative default.**

D. Request and clock card

Step	Rule
request	written/electronic; local official language allowed; no reasons
oral assistance	PIO reduces request to writing
transfer	<=5 days
ordinary decision	30 days
life/liberty	48 hours
APIO	+5 days
delay	deemed refusal + information free
first appeal	ordinarily 30 days
FAA disposal	30 days; up to 45 with reasons
second appeal	ordinarily 90 days
third party	notice 5 days; representation 10; decision 40

E. Remedy routing

DOCUMENT WANTED -> request -> first appeal -> second appeal

SYSTEM OBSTRUCTION -> section 18 complaint

UNDERLYING SERVICE -> department / grievance / court

CORRUPTION INVESTIGATION -> vigilance / Lokpal / agency

- [FACT] *State of Manipur*: complaint is not automatic substitute for disclosure appeal.
- [FACT] In appeal, PIO bears the denial burden; Commission decision is binding subject to constitutional review.

F. CIC/SIC institutional card

Head	CIC	SIC
composition	Chief + <=10 ICs	State Chief + <=10 SICs
appoint	President	Governor
panel	PM + LS LoP + Union Cabinet Minister	CM + Assembly LoP + State Cabinet Minister
LoP absence	largest opposition-group leader deemed	same
remove	President	Governor
SC inquiry	proved misconduct/incapacity	same
suspend during inquiry	President	Governor

G. Eligibility and conflict card

- [FACT] Eminence + knowledge/experience in law, science-tech, social service, management, journalism, mass media, administration/governance.
- [FACT] No legislature membership, office of profit, party connection, business or profession.

H. 2019 service-condition card

Head	Current rule
term	3 years under 2019 Rules
maximum age	65 under Act
Central Chief pay	Rs 2,50,000 fixed
Central IC pay	Rs 2,25,000 fixed
State Chief/SIC pay	Rs 2,25,000 fixed each
Chief reappointment	no
IC reappointment	no as IC; may become Chief
aggregate IC + Chief	<=5 years

Autonomy thesis: 2019 moved core tenure/pay protection from Parliament's Act to Central executive rules; appointment/removal/powers safeguards survived.

I. Removal precision

PROVED MISBEHAVIOUR / INCAPACITY

- > President/Governor reference
- > Supreme Court inquiry
- > removal order

DIRECT GROUNDS

- > insolvency / moral-turpitude conviction / paid outside work / infirmity / prejudicial interest
- > direct order by President/Governor

J. Power and consequence card

Tool	Exact use
civil-court powers	evidence gathering in section 18 inquiry
inspect any covered record	record cannot be withheld from Commission
section 19(8)	disclosure, PIO appointment, publication, records, training, annual-report compliance
compensation	public authority -> applicant loss/detriment
penalty	PIO personally; Rs 250/day; max Rs 25,000
discipline	recommendation for persistent default

Trap: Civil-court powers do not make CIC/SIC civil courts.

K. Exemption and disclosure card

IDENTIFY s.8(1) CLAUSE

-> show protected harm

-> apply s.10 severability

-> apply s.8(2) public-interest override

-> give reasons + appeal route

- [FACT] Section 9 = non-State copyright ground.
- [FACT] Section 11 = third-party procedure, **not exemption**.
- [FACT] Section 24 = listed security bodies, but corruption and human-rights provisos survive; HR route uses Commission approval + 45 days.
- [FACT] Section 22 = RTI overrides inconsistent OSA/other law, while RTI's own exemptions remain.

L. Current privacy/DPDP control

Point	Safe current statement
commencement	G.S.R. 843(E), 13 Nov 2025 commenced s.44(3)
current RTI s.8(1)(j)	"information which relates to personal information"
old tests/proviso	historical, not current clause
public-interest route	general s.8(2) remains
redaction	s.10 remains
DPDP phasing	most ss.3-17 commence 13 May 2027
litigation	no unverified stay/bench/outcome claim

Balanced line: The clause-level exemption broadened; section 8(2), severability, reasons, appeal and constitutional proportionality remain controls.

M. Seven cases in one glance

Case	Recall phrase
<i>Raj Narain</i>	right to know public acts
<i>S.P. Gupta</i>	open government
<i>CBSE</i>	existing information; no creation duty
<i>State of Manipur</i>	complaint ≠ disclosure appeal
<i>Jayantilal Mistry</i>	no generic regulator fiduciary shield
<i>Subhash Chandra Agarwal</i>	CJI office public authority; proportionality
<i>Anjali Bhardwaj</i>	timely transparent appointments

N. Independence and reform recall

FORMAL STRENGTH:

committee + eligibility + protected removal + binding/penal power

PRACTICAL WEAKNESS:

executive-rule tenure/pay + vacancies + staff/budget dependence + records failure + non-compliance + weak penalty use

REFORM:

statutory core safeguards + advance transparent selection + independent secretariat + section 4 audit + age-wise dashboard + reasoned penalty/compliance tracking + privacy redaction guidance

O. PYQ and answer spines

- **Verified direct PYQ:** 2020 GS-II Q2, 10 marks/150 words—recent RTI amendments and Commission autonomy.
- **10 marks:** identify 2019 legal change -> autonomy mechanism -> surviving safeguard -> graded verdict.
- **15 marks:** architecture -> powers -> implementation limits -> current privacy change -> reforms.
- **20 marks:** constitutional root -> records/disclosure -> request/appeals -> Commission design/powers -> exemptions/privacy -> independence -> balanced reform.

P. Last-minute traps

1. Statutory, not constitutional.
2. Chief + **not more than ten**, not exactly ten.
3. LoP deeming rule uses largest opposition group.
4. CIC removed by President; SIC by Governor.
5. Three-year **rule-made** term; age 65 in Act.
6. IC may become Chief; aggregate maximum five years.
7. State Chief and State IC both Rs 2,25,000 under current Rules.
8. Complaint is not the disclosure appeal.
9. Section 11 is procedure, not exemption.
10. Compensation targets public authority; penalty targets PIO.
11. New section 8(1)(j) is operative from 13 November 2025.
12. Section 8(2) remains.
13. Binding decisions remain judicially reviewable.
14. RTI reveals the service file; it does not itself grant the service.